



United States Department of the Interior

FISH AND WILDLIFE SERVICE

Ecological Services
4000 Airport Parkway
Cheyenne, Wyoming 82001

ES-61411
pd/MINES/wy4584.pd

May 30, 2001

Mr. John Wagner
Wyoming Department of Environmental Quality
Land Quality Division
Herschler Building, 3 West
122 W. 25th St.
Cheyenne, WY 82001

Dear Mr. Wagner:

Thank you for the notification regarding the annual report for Mountain Cement's Weaver Limestone Quarry (permit number 658) in Albany County, Wyoming. Photographs of the permit area indicate the area may provide suitable habitat for nesting mountain plovers. The mountain plover has been proposed for listing as a threatened species under the Endangered Species Act of 1973, as amended. Mountain plovers are known to occur in the Laramie area. We encourage the permittee to take all necessary precautions to avoid impacts to these species as a result of mining activities.

If you have further questions on this subject, please contact Pat Deibert of my staff at the letterhead address or phone (307) 772-2374, extension 26.

Sincerely,

Michael M. Long
Field Supervisor
Wyoming Field Office

cc: Statewide Habitat Protection, WGFD, Cheyenne, WY

Mountain Cement ✓

From: Joyce Holmes
To: annual report groups
Date: 3/26/01 12:19PM
Subject: Annual reports received

LQD received the following annual reports on 3-26-01:

Permit 300C - Monolith Shale Quarry - Mountain Cement Co.

Permit 658 - Weaver Limestone Quarry - Mountain Cement Co.

Permit 297C - Red Mountain Gypsum - Mountain Cement Co.

Please review.

Thanks

CC: Hogg, Bill; Wagner, John



MOUNTAIN
CEMENT COMPANY

6 Sand Creek Rd.
Laramie, Wyoming 82070
(307) 745-4879

March 23, 2001

Mr. John Wagner
WDEQ-LQD
Herschler Building
122 West 25th St.
Cheyenne, WY 82002



Dear Mr. Wagner,

Enclosed is Mountain Cement Company's Annual Report for the Weaver Limestone Quarry, permit no. 658. Once the bond amount has been approved by LQD, we will pursue a replacement bond.

If you have any questions about the report, please call me at (307) 745-4879 x. 121.

Sincerely,

Scott Nielson
Environmental Manager

Encl.

**MOUNTAIN CEMENT COMPANY
PERMIT 658-WEAVER LIMESTONE QUARRY**

**ANNUAL REPORT
AND
MINE AND RECLAMATION PLANS**

MARCH 1, 2000-FEBRUARY 28, 2001

SUBMITTED TO:

**WYOMING DEPARTMENT OF ENVIRONMENTAL QUALITY
LAND QUALITY
HERSCHLER BUILDING
CHEYENNE, WYOMING**

PREPARED BY:

**MOUNTAIN CEMENT COMPANY
5 SAND CREEK ROAD
LARAMIE, WY
(307) 745-4879**



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Land Quality Division
Districts I, II & III
Required Annual Report Information

FOR LARGE MINING OPERATIONS

RE: Wyoming Environmental Quality as Amended §35-11-411, Annual Report

I.

A.	Name of Permittee.	MOUNTAIN CEMENT CO.
B.	Address.	5 SAND CREEK ROAD
		LARAMIE, WY 82070
C.	Mining Permit Number	658
D.	Date of Permit Issuance (and any Amendment).	February 29, 1996
E.	Mineral(s) Mined.	LIMESTONE
F.	State and Federal Mineral Lease Numbers.	NONE

II. Time period covered by the report. **MARCH 1, 2000 TO FEBRUARY 28, 2001**

III. Mining:

- (a) Tabulate acreage disturbed (by pits, roads, facilities, etc.) during the report period and illustrate on map.
17.1 acres disturbed during 2000-2001 report period
- (b) Tabulate acreage affected to date by years and illustrate on map.
19.2 acres disturbed during 1997
17.1 acres disturbed during 2000
36.3 acres total since mine start-up
- (c) Tabulate all topsoil stockpile volumes, dated of stockpiling and illustrate on map.
2,300 CY-Road (1997)
10,700 CY-Mining Area (1997)
10,150 CY-Mining Area (2000)
23,150 CY total since mine start
- (d) Tabulate all out-of-pit spoil volumes, dates of placement and illustrate on map.
15,000 CY overburden (1997)
3,500 CY overburden (2000)
18,500 CY total since mine start
- (e) Tabulate quantity of commodity mined by years.
124,376 tons limestone mined 1997
100,500 tons limestone mined 1998
148,520 tons limestone mined 1999
361,150 tons limestone mined 2000
734,546 tons limestone since mine start-up

f) Described any new construction during the report period and illustrate on map; include:

1. Shop facilities, erection sites. **None**
2. Roads. **The entrance road to the Harney Creek crossing was paved.**
3. Culverts. **None**
4. Diversion ditches, collector ditches, interceptor ditches, etc. **None**
5. Sediment ponds, containment ponds. **None**
6. Monitoring sites. **None**

g) Describe any environmental problem areas and a proposed plan for mitigating them – illustrate on map; include:

1. Pit stability problems. **None**
2. Subsidence. **None**
3. Accidental water discharge, dam failure, etc. **None**
4. Slumping or sliding. **None**
5. Revegetation problem areas. **None**

4. Reclamation:

A. Tabulate the acreage completed during the report period and illustrate on map. Distinguish between: **None completed this report period.**

1. Backfilled, graded, and contoured. Including date of approval for coal permits.
2. Topsoiled.
3. Seeded.
4. Reseeded.
5. Indicate where special construction or reclamation practices were used such as for sand bodies or alluvial material.

B. Submit a map showing the reconstructed contours. The map must be the same scale and contour interval as the PMT map in the approved permit. **None completed.**

C. Tabulate acreage reclaimed (seeded with permanent seed mix) to date by years and illustrate on map. **None completed this report period.**

D. Describe reclamation procedures used during the report period: **No reclamation occurred during this report period.**

1. Depth of topsoil applied. Indicate whether from stockpile or directly applied.
2. Type of seed is used for seeding during the report period.
3. Dates of seeding during the report period.

4. Seeding procedures used.
5. Rate of seed application.
6. Type and rate of any fertilizer applied.
7. Type and rate of mulch applied.
8. Rate of irrigation water applied.
9. Any deviations to the approved reclamation plan including, in addition to the items, above, changes to the contour or location of post mining features.

E. Describe results of previous revegetation efforts; include:

1. Types of seed that have germinated and are growing. **None**
2. Types of seed that are not growing successfully. **None**
3. Areas experiencing problems with weeds and weed types. **None**
4. Significant erosional problems. **None**
5. Areas of unsuitable overburden on the surface. **None**
6. Procedures used or proposed to correct these problems. **N/A**

F. Summarize the actual reclamation costs incurred during the report period. Costs should be itemized for each operation (i.e. grading, topsoil replacement, seeding, etc.) and for each type of disturbance (i.e. spoil, haul roads, facilities removal, etc.) on a per-acre basis. **None**

5. Describe in detail mining plans for the coming year including revised time schedules and all proposed deviations from previously approved plans. Acreages should be tabulated and illustrated on a map. **See Mine Plan Report and Annual Report Map.**
6. Describe in detail reclamation plans for the coming year including revised time schedules and deviations from previously approved plans. Acreages should be tabulated and illustrated on a map. **See Reclamation Plan Report.**

NOTE:

On items 5 and 6 above, any proposed deviation from the approved mine and reclamation plan must be described in detail. The proposed mining and reclamation plans will be reviewed and the operator will be notified if further information is required. "Significant" deviations will require permit revision application (Form 11) and public notice pursuant to Chapter VII Section 2 of Land Quality Division Noncoal Regulations.

7. Describe in detail all monitoring activities during the report period, summarize the data, describe procedures to correct any noted problems and deviations from previously approved methods, including:

- A. Groundwater analyses. **Groundwater sampling was not completed during the report year due to weather conditions. A letter describing the reason and setting a yearly schedule will be submitted to LQD.**
 - B. Surface water analyses and discharge data. **None**
 - C. Precipitation data. **None**
 - D. Subsidence monitoring. **None**
 - E. Overburden analyses. **None**
 - F. Topsoil quantities - compare calculated and actual. **N/A**
 - G. Vegetation data. **None**
 - H. Wildlife data. **Raptor Survey enclosed**
 - I. A map showing and identifying monitoring locations. **None**
8. Operator's Reclamation Performance Bond Estimate as required by Wyoming Statute §35-11-417. Reclamation cost estimates should be itemized in detail to reflect the actual estimated costs of reclaiming all lands which have been affected to date and those lands to be affected during the next report period. Costs must reflect procedures as specified in the approved mine and reclamation plan. The estimated cost of dismantling and disposal of all facilities and structures must be included. Salvage value will not be used to offset bonding requirements. Reclamation projected for the coming year will not be used to offset bonding requirements. Pit backfill costs must reflect actual yardages to be moved. Actual yardages to be moved will reflect the removal or placement of additional material to correct any deviations between the PMT map and the map submitted for part 4.(b). **See Table II**
9. Supply any additional information as requested by the Division related to:
- A. Notices of violation. **None**
 - B. Orders. **None**
 - C. Permit stipulations; and **None**
 - D. Other special conditions. **None**
10. All drill holes used for immediate developmental expansion of the advancing pit(s) shall be tabulated by location and depth and shown on the mining plan map. Pursuant to W.S. §35-11-404(e), all drill holes used for exploration shall be reported to the LQD Abandoned Drill Hole Program Supervisor and the State Engineer. **None**

INTRODUCTION

Mountain Cement Company continued to mine at the Weaver Quarry WDEQ/LQD Permit No. 658 during the past report period. The last mining activity occurred during January and February 2001. This activity was located in the northwest corner of the permit area, as described in the Mine Plan.

MINE PLAN

The following mine plan describes the actual mining activities for the 2000-2001 report period, and likely future mining operations for the 2001-2002 report period at Mountain Cement Company's Weaver Limestone Quarry, Permit No. 658.

Past Mining Activities: Mining took place in the north west corner of the permit area in the SW ¼ of Section 26 during the 2000-2001 report period. The first round of mining finished up the limestone that had been stripped previously located in section I as described in the mine plan. Then mining proceeded back to the east end of the pit which required stripping approximately 3,500 CY of overburden and 10,150 CY of topsoil. This mining started section II on the mine plan map. About 20,850 cubic yards of topsoil and 18,500 cubic yards of overburden are contained in these stockpiles. An additional 2,300 cubic yards of topsoil is stockpiled along the side of the haulroad.

Future Mining Activities: Mountain Cement plans to continue mining the site during the next report period, removing approximately 400,000 tons of limestone. Mining will occur in the same pit, expanding it further to the east. It will not be necessary to disturb any more land since the area east of the pit has already been stripped of topsoil and overburden in 2000.

RECLAMATION PLAN

The following reclamation plan describes actual past reclamation and expected future efforts.

Past Reclamation Activities:

Reclamation has not yet been initiated at this mine site. 1997-1998 was the first year limestone was quarried at this site.

Future Reclamation Activities:

No reclamation is planned for the next report period. Reclamation will follow the Reclamation Plan, which states that reclamation of each mine sequence section will begin within two years after mining is completed in that section. Mountain Cement just completed mining within Section I of the Mine Plan sequence. Reclamation will begin after mining progresses further into Section II.

ESTIMATED RECLAMATION COSTS

Mountain Cement Company reclamation performance bond estimate for current disturbances and expected 2001-2002 report disturbances is detailed in Table II. Our current bond is much lower than is needed, so Mountain Cement Company is suggesting using a bond amount of \$120,000 compared to the estimated cost of \$77,700.

TABLE I - Description of Weaver Quarry lands. (Includes acreage projected to be disturbed during the upcoming report period)

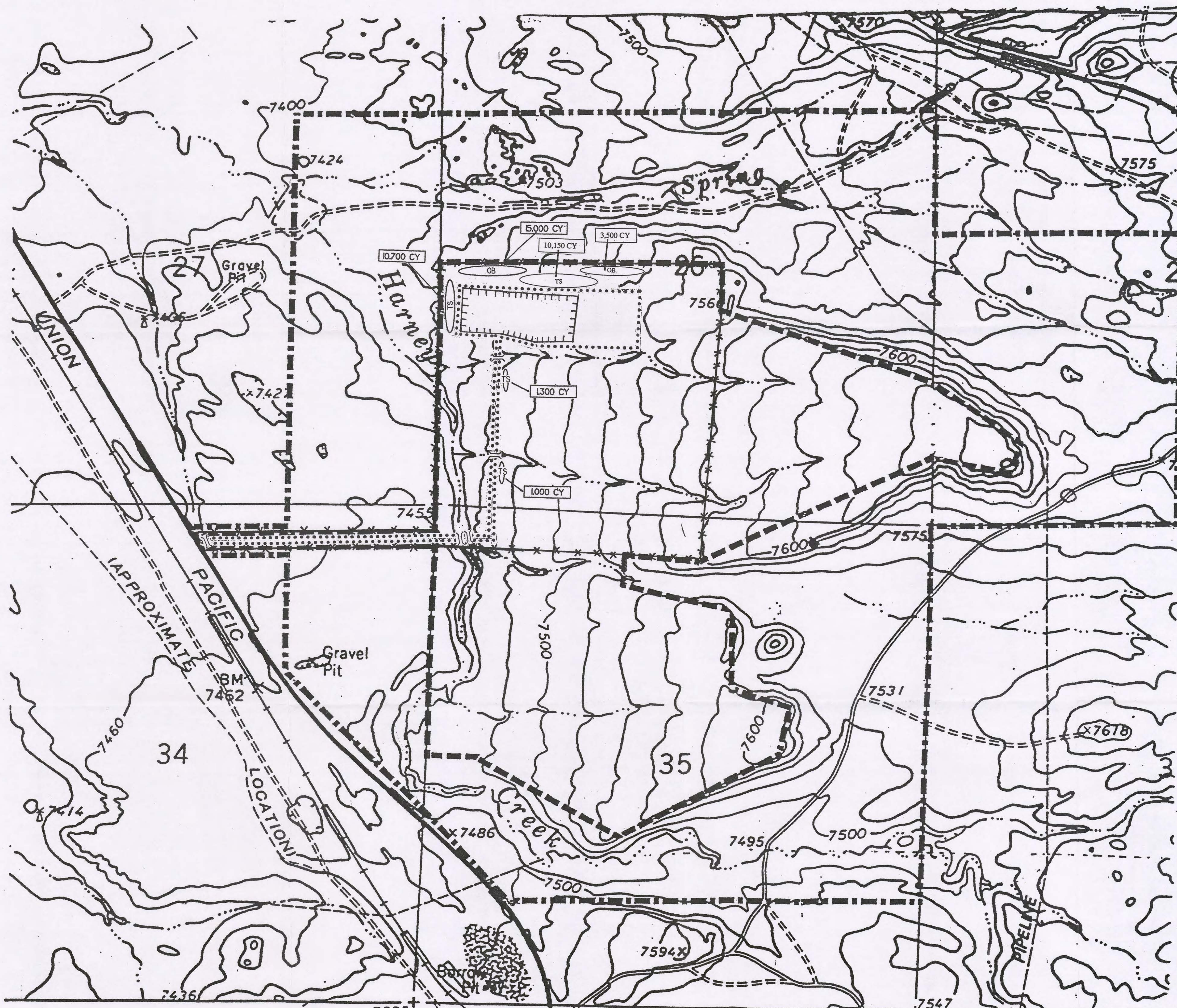
LAND DESCRIPTION	ACRES
PERMIT AREA	1372.5
AFFECTED AREA	36.3
PROECTED DISTURBANCE FOR 2000-2001	0.0
LANDS REQUIRING AREA BOND COST	36.3
LANDS REQUIRING FULL INCREMENTAL BOND COST	36.3
LANDS REQUIRING PARTIAL INCREMENTAL BOND COST (Reseeding)	0
LANDS WITH REQUESTED FULL BOND RELEASE, > 2 YEARS	0
LANDS W/ APPROVED FULL BOND RELEASE	0.0
SUBTOTAL(INCREMENTAL BOND TOTAL)	36.3
NATIVE LANDS	1336.2
TOTAL OF BONDED, BOND RELEASED AND NATIVE LANDS	1372.5

TABLE II - Estimated Reclamation Costs for Disturbances through February 28, 2001 and Projected Disturbances for the 2001-2002 Report Period, Weaver Quarry, LQD Permit No. 658.

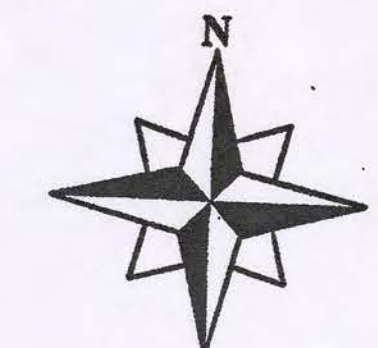
BOND TYPE		APPENDIX LQD, GL 12	AVERAGE ONE-WAY HAUL, ft	UNIT	UNIT COST \$/unit	TOTAL, \$
Area Bond	Backfill + Recontouring	A,B,C,D, E,E1,F,G	750	18,500 CY	5% Res Grd 0.70	12,950
Incremental Bond	Misc. Overburden Redist.	A-G, E1	N/A	CY		
	Demolition (culverts)	H-K	N/A	5 UNITS (50 ft sections)	69.7/20 ft section + 8,500	9,370
	Scarification or Ripping (Roads)	P, I1	N/A	3.0 AC 2.2 AC	663.93 474.92 Asphalt	1,992 1,045
	Topsoil Redist.	C, D	750	23,150CY	0.70	16,205
	Final Grading	G	N/A	36.3 AC	38.45	1,395
	Seeding only	Q	N/A	0 AC	250.00	0
	Seed, Mulch, Prepare soil + Fencing	Q	N/A	36.3 AC 0 ft	600.00 1.70	21,780

SUBTOTAL	\$64,740
20% DEQ CONTINGENCY	<u>\$12,950</u>
TOTAL	\$77,700

Total Land Quality Bond Amount = \$22,000



LEGEND	
TS	TOPSOIL STOCKPILE
OB	OVERBURDEN STOCKPILE
...	DISTURBED BOUNDARY
- - -	PERMIT BOUNDARY
- - -	AFFECTED AREA BOUNDARY
	PIT WALLS
	CULVERT
- x -	FENCE LINE



Annual Report Map
WEAVER LIMESTONE QUARRY
 Permit No. 658
 March 1, 2000 to February 28, 2001

Mountain Cement Company
 5 Sand Creek Rd
 Laramie, Wyoming
 (307) 745-4879

Township 14N, Range 73W, Sections 26 & 35

SCALE 1" = 500'
 CONTOUR INTERVAL 20'
 Revised 3/20/00 SN





The State
of Wyoming



Department of Environmental Quality

Jim Geringer, Governor

Herschler Building • 122 West 25th Street • Cheyenne, Wyoming 82002

ADMIN/OUTREACH	ABANDONED MINES	AIR QUALITY	INDUSTRIAL SITING	LAND QUALITY	SOLID & HAZ. WASTE	WATER QUALITY
(307) 777-7758	(307) 777-6145	(307) 777-7391	(307) 777-7369	(307) 777-7756	(307) 777-7752	(307) 777-7781
FAX 777-3610	FAX 777-6462	FAX 777-5616	FAX 777-6937	FAX 777-5864	FAX 777-5973	FAX 777-5973

February 26, 2001

Mr. Scott Nielson
Mountain Cement Company
5 Sand Creek Rd.
Laramie, WY 82070

**RE: Permit 658, Weaver Quarry, Mountain Cement Company (MCC),
Annual Report Extension Request**

Dear Mr. Nielson:

Land Quality Division (LQD) received your request for a 30 day extension for the submittal of the Weaver Quarry 2000-2001 Annual Report. LQD will allow the 30 day extension so that MCC can furnish more relative information in the Annual Report. The Annual Report submittal date of March 28, 2001 is approved for this year.

If you find any questions regarding this approval, please contact Bill Hogg at (307) 777-7057.

Sincerely,

Bill Hogg
Land Quality Division

Attachment/ Inspection Report



MOUNTAIN
CEMENT COMPANY

5 Sand Creek Rd.
Laramie, Wyoming 82070
(307) 745-4879

JH
BH
RAL

February 15, 2001

John Wagner
WDEQ-LQD
Herschler Building
122 W. 25th Street
Cheyenne, WY 82002



Dear Mr. Wagner,

I am requesting a thirty-day extension for the annual report for the Weaver Limestone quarry, permit no. ~~657~~⁶⁵⁸. We are currently crushing at this location and the disturbance area is still changing. If approved, I will complete and submit the report by March 28, 2001.

If you have any questions, please call me at (307) 745-4879 ext. 121.

Sincerely,

Scott Nielson
Environmental Manager



The State
of Wyoming



Department of Environmental Quality

Jim Geringer, Governor

Herschler Building • 122 West 25th Street • Cheyenne, Wyoming 82002

ADMIN/OUTREACH (307) 777-7758 FAX 777-3610	ABANDONED MINES (307) 777-6145 FAX 777-6462	AIR QUALITY (307) 777-7391 FAX 777-5616	INDUSTRIAL SITING (307) 777-7369 FAX 777-6937	LAND QUALITY (307) 777-7756 FAX 777-5864	SOLID & HAZ. WASTE (307) 777-7752 FAX 777-5973	WATER QUALITY (307) 777-7781 FAX 777-5973
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December 11, 2000

Mr. Scott Nielson
Mountain Cement (Weaver Pit)
5 Sand Creek Road
Laramie, WY 8208

RE: Permit No. 658

Dear Mr. Nielson:

Enclosed is an Annual Report Form for your use in reporting all mining and reclamation activities in the referenced permit area since the last report. The new report will be due on or up to thirty days before February 28, 2001, as required by W.S. §35-11-411. Upon receipt and review of the report, you will be contacted by a District staff member to arrange the annual inspection.

Please contact me if you have any questions.

Sincerely,

Joyce Holmes
District I
Land Quality Division

/jh
Enclosure